



February 13, 2026

ENGROSSED HOUSE BILL No. 1025

DIGEST OF HB 1025 (Updated February 10, 2026 12:38 pm - DI 106)

Citations Affected: IC 36-1.

Synopsis: County policies. Specifies that county policies do not apply to a prosecuting attorney or an employee of a prosecuting attorney's office, and that county residency requirements do not apply to: (1) public defenders (except for the chief public defender); (2) employees of a public defender office; (3) judicial officers; or (4) court personnel.

Effective: Upon passage.

**Zimmerman, McNamara, Gore,
Bartels**

(SENATE SPONSORS — GLICK, POL JR., TAYLOR G, CARRASCO)

December 1, 2025, read first time and referred to Committee on Courts and Criminal Code.
January 8, 2026, amended, reported — Do Pass.
January 12, 2026, read second time, ordered engrossed.
January 13, 2026, engrossed. Read third time, passed. Yeas 92, nays 0.

SENATE ACTION

January 27, 2026, read first time and referred to Committee on Corrections and Criminal Law.
February 12, 2026, amended, reported favorably — Do Pass. Reassigned to Committee on Appropriations pursuant to Rule 68(b).

EH 1025—LS 6137/DI 149



February 13, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1025

A BILL FOR AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 36-1-3-15.6 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE
3 UPON PASSAGE]: **Sec. 15.6. (a) The requirement to appropriate**
4 **an amount necessary for the operation of a prosecuting attorney's**
5 **office under IC 33-39-6-2(h) does not subject a prosecuting**
6 **attorney or an employee of a prosecuting attorney's office to any**
7 **county policy.**
8 **(b) The following may not be subject to a county residency**
9 **requirement:**
10 **(1) A public defender.**
11 **(2) An individual employed by a public defender office or**
12 **agency.**
13 **(3) A judicial officer.**
14 **(4) Court personnel.**
15 **(c) This section does not apply to a chief public defender.**
16 SECTION 2. An emergency is declared for this act.

EH 1025—LS 6137/DI 149



COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred House Bill 1025, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, delete lines 7 through 8, begin a new line block indented and insert:

"(1) A public defender.

(2) An individual employed by a public defender office or agency."

and when so amended that said bill do pass.

(Reference is to HB 1025 as introduced.)

MCNAMARA

Committee Vote: yeas 12, nays 0.

COMMITTEE REPORT

Mr. President: The Senate Committee on Corrections and Criminal Law, to which was referred House Bill No. 1025, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, line 3, after "(a)" insert **"The requirement to appropriate an amount necessary for the operation of a prosecuting attorney's office under IC 33-39-6-2(h) does not subject a prosecuting attorney or an employee of a prosecuting attorney's office to any county policy.**

(b)".

Page 1, line 4, delete "requirement, unless the residency" and insert **"requirement:**

(1) A public defender.

(2) An individual employed by a public defender office or agency.

(3) A judicial officer.

(4) Court personnel."

Page 1, delete lines 5 through 9.

Page 1, line 10, delete "(b)" and insert **"(c)".**

EH 1025—LS 6137/DI 149



Renumber all SECTIONS consecutively.
and when so amended that said bill do pass.

(Reference is to HB 1025 as printed January 8, 2026.)

FREEMAN, Chairperson

Committee Vote: Yeas 8, Nays 1.

REPORT OF THE PRESIDENT
PRO TEMPORE

Mr. President: Pursuant to Senate Rule 68(b), I hereby report that, subsequent to the adoption of the Committee Report on February 12, 2026, House Bill 1025 was reassigned to the Committee on Appropriations.

BRAY

